

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 16-16

MAVL CAPITAL, INC.,
IAM & AL GROUP INC., and MAXIM OSTROVSKIY,

Complainants,

– vs. –

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,

Respondents.

**COMPLAINANTS’ MOTION FOR AN ENLARGEMENT OF
TIME TO FILE EXCEPTIONS**

Pursuant to Rules 69, 71, 102, 228, and 230 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this motion to the Commission for an enlargement of the current due date for filing Exceptions to the Presiding Officer’s Initial Decision on Remand, which was served on September 29, 2021. Specifically, complainants request an additional twenty-two (22) days from October 21, 2021 (current due date for Exceptions) for purposes of filing Exceptions, up to and including November 12, 2021.

RELEVANT PROCEDURAL HISTORY

On September 29, 2021, the Presiding Officer’s issued the Initial Decision on Remand, directing that Exceptions be filed within twenty-two days, to wit: on or before October 21, 2021.

ARGUMENT

Good Cause Exists for Enlarging the October 21, 2021 Due Date for the Filing of Exceptions

The undersigned bases the instant request for an enlargement of time for filing Exceptions upon the following reasons:

1. As the Commission, the Presiding Officer and Counsel for Respondents are aware via correspondence from the undersigned between October 13, 2021 and today relating to FMC Docket No.: 20-12, the undersigned had suffered an acute medical issue requiring multiple trips to the hospital during that time period. For the same reasons set forth in that correspondence, the undersigned seeks additional time to file the Exceptions as set forth above. For the same reasons set forth in that correspondence, the undersigned would have filed the instant motion for enlargement of time sooner but for the unexpected circumstances. To the extent that supporting medical documentation is required, it will be provided to the Commission for *in camera* review upon request.
2. The undersigned's email between the Commission, the Presiding Officer and Counsel for Respondents of this date also explains that after having spoken with Mr. Pogil yesterday, I do not expect that he would object to my application for an enlargement of time to file Exceptions. I appreciate his courtesy.
3. For these reasons, and subject to the expectation and hope that the medical issue has been resolved for the foreseeable future and will not require an additional application to the Commission, complainants request an additional twenty-two (22) days from October 21, 2021 (current due date for Exceptions) for purposes of filing Exceptions, up to and including November 12, 2021.

RELIEF REQUESTED

It is therefore respectfully requested that the Commission issue an Order enlarging the current due date for filing Exceptions to the Presiding Officer's Initial Decision on Remand. Specifically, complainants request an additional twenty-two (22) days from October 21, 2021 (current due date for Exceptions) for purposes of filing Exceptions, up to and including November 12, 2021.

WHEREFORE, it is respectfully requested that Complainants' motion be granted in its entirety.

Dated: October 21, 2021
Brooklyn, NY

Respectfully Submitted,

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 201-956-7071
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION FOR AN ENLARGEMENT OF TIME TO FILE EXCEPTIONS** upon Respondents' Counsel at the following address:

by email to: garry.pogil@gmail.com.

/s Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.
Mailing Address: P.O. Box 245599
Brooklyn, NY 11224
Tel: 201-956-7071
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: October 21, 2021
Brooklyn, New York